

**Note:**

\*Some applications allege discrimination on more than one ground, so the total may exceed 100%.

**Table 5: HRTO Performance Measures**

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| Hearings and Mediation                                                                                | Target | 2021-2022<br>% of time<br>standard is<br>met | 2020-2021<br>% of time<br>standard is<br>met | 2019-2020<br>% of time<br>standard is<br>met | 2018-2019<br>% of time<br>standard is<br>met |
|-------------------------------------------------------------------------------------------------------|--------|----------------------------------------------|----------------------------------------------|----------------------------------------------|----------------------------------------------|
| First mediation date offered within 150 days of the date parties agree to mediation                   | 80%    | 29%                                          | 26%                                          | 27%                                          | 62%                                          |
| First hearing date offered within 180 days of the date the application is ready to proceed to hearing | 80%    | 0%*                                          | 11%                                          | 7%                                           | 35%                                          |
| Decisions for hearings which take 3 days or less will be issued within 90 days                        | 80%    | 43%                                          | 42%                                          | 76%                                          | 76%                                          |
| Decisions for hearings which take longer than 3 days, will be issued within 180 days                  | 80%    | 60%                                          | 27%                                          | 50%                                          | 29%                                          |

**Note:**

\*The HRTO has been engaged in COVID recovery efforts, including rescheduling the many events that were cancelled at the start of the pandemic. Rescheduled events moved scheduling timelines beyond targets for 2021/22. Timelines are expected to improve significantly once the HRTO has completed its full recovery from the pandemic.

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## **Landlord and Tenant Board (LTB)**

The LTB resolves applications related to residential tenancy disputes between landlords and tenants and eviction disputes in non-profit housing co-operatives.

The LTB's authority and jurisdiction are derived from the *Residential Tenancies Act, 2006* (RTA) and the *Statutory Powers Procedure Act*. The LTB is also mandated to provide information to landlords and tenants about their rights and responsibilities under the RTA.

In July 2020, the Ontario Legislature made a number of amendments to the RTA and one of its regulations. Most amendments took effect in 2020 and the remainder on September 1, 2021. A new application type allows landlords to apply to the LTB to claim compensation for unpaid rent, unpaid utilities, or damages to the rental unit for up to one year after the tenant has moved out. This and other amendments required changes to the LTB's rules and procedures, including creating new or amending existing LTB forms, brochures, practice directions and interpretation guidelines.

### **Operational Highlights**

The LTB implemented several initiatives in 2021-2022 to continue to address backlogs and ensure timely and responsive service.

A key component to support these initiatives was the hiring of additional LTB staff to assist with application processing, scheduling and issuing of Notices of Hearings and orders.

The LTB continued its focus on building up its adjudicator complement with the onboarding of 16 additional adjudicators to assist with hearing backlogs. As of March 31, 2022, there were 39 full-time adjudicators and 51 part-time adjudicators making it the highest number of adjudicators ever appointed to the LTB.

In May 2021, the L<sub>TB</sub> implemented a scheduling plan that prioritized mediation services, which allowed for more matters to be scheduled and heard. It included same day access to mediation services with a Dispute Resolution Officer (DRO) before moving forward to a hearing with an adjudicator. The plan also included conducting multiple tenant case management hearings in one hearing block with several DROs and resuming a two DRO team approach to Above Guideline Increase case management hearings.

Although COVID-19 related challenges have had a significant impact on L<sub>TB</sub>'s caseload, and in particular the five-month moratorium on evictions from March to August 2020, progress is being made. In 2021-2022, the L<sub>TB</sub> achieved a steady state of operations receiving 61,586 applications and resolving 61,868 files.

The L<sub>TB</sub> is committed to ongoing engagement with stakeholders to solicit feedback and input and has continued to meet regularly with stakeholders on changes to rules and processes, in accordance with the Tribunals Ontario Consultation Policy.

## Statistics

**Table 1: L<sub>TB</sub> Applications**

Table 1: L<sub>TB</sub> Applications

| Application                 | 2021-2022 | 2020-2021 | 2019-2020 |
|-----------------------------|-----------|-----------|-----------|
| Applications Received*      | 61,586    | 48,422    | 80,874    |
| Applications Resolved**     | 61,868    | 35,983    | 72,064    |
| Active Cases at Year-End*** | 32,800    | 34,731    | 22,803    |

### Notes:

\* The totals do not include non-profit co-operative housing eviction applications.

\*\* In 2021-2022, the majority of applications were resolved at hearing (ordered by hearing contested or uncontested, or ordered by review) – 48%, through mediation (mediated or ordered by hearing mediated) – 11% and through withdrawals – 20%.

\*\*\* In a small number of cases, “resolved” applications are re-opened (e.g., when the L<sub>TB</sub> grants a request for review or an order). As a result, a single application can result in more than one resolution. Therefore, the number of applications open at the end of the fiscal year does not necessarily equal the number from the previous year plus “applications received,” less the “applications resolved.”

**Table 2: Landlord Applications Received by Type**

Table 2: Landlord Applications Received by Type

| Case Type | Application Type                              | 2021-2022 | 2020-2021 | 2019-2020 | 2018-2019 |
|-----------|-----------------------------------------------|-----------|-----------|-----------|-----------|
| A1        | Determine whether the act applies             | 115       | 96        | 102       | 126       |
| A2        | Sublet or assignment                          | 376       | 383       | 491       | 378       |
| A3        | Combined application (usually includes an L1) | 1,385     | 1,065     | 2,986     | 3,362     |
| A4        | Vary rent reduction amount                    | 55        | 109       | 86        | 173       |
| L1        | Terminate & evict for non-payment of rent     | 31,130    | 24,481    | 44,621    | 46,043    |
| L2        | Terminate for other reasons and evict         | 13,852    | 11,031    | 15,732    | 13,945    |
| L3        | Termination – tenant gave notice or agreed    | 2,289     | 1,391     | 1,877     | 1,711     |
| L4        | Terminate the tenancy – failed settlement     | 3,545     | 1,551     | 5,156     | 5,571     |

|              |                                                   |               |               |               |               |
|--------------|---------------------------------------------------|---------------|---------------|---------------|---------------|
| L5           | Rent increase above the guideline                 | 613           | 404           | 758           | 717           |
| L6           | Review of provincial work order                   | 0             | 1             | 1             | 4             |
| L7           | Transfer tenant to care home                      | 3             | 6             | 1             | 5             |
| L8           | Tenant changed locks                              | 35            | 25            | 41            | 39            |
| L9           | Application to collect rent                       | 931           | 1,104         | 900           | 1,394         |
| L10          | Application to collect money a former tenant owes | 7             | N/A           | N/A           | N/A           |
| <b>Total</b> |                                                   | <b>54,336</b> | <b>41,647</b> | <b>72,752</b> | <b>73,738</b> |

**Table 3: Tenant Applications Received by Type**

Table 3: Tenant Applications Received by Type

| Case Type    | Application Description              | 2021-2022    | 2020-2021    | 2019-2020    | 2018-2019    |
|--------------|--------------------------------------|--------------|--------------|--------------|--------------|
| A1           | Determine whether the act applies    | 80           | 64           | 85           | 116          |
| A2           | Sublet or assignment                 | 59           | 74           | 62           | 66           |
| A3           | Combined application                 | 870          | 583          | 1,610        | 1,780        |
| A4           | Vary rent reduction amount           | 1            | 1            | 0            | 1            |
| T1           | Rent rebate (e.g., illegal rent)     | 843          | 718          | 884          | 863          |
| T2           | Tenant rights                        | 2,984        | 3,145        | 3,072        | 3,053        |
| T3           | Rent reduction                       | 99           | 68           | 78           | 148          |
| T4           | Failed rent increase above guideline | 8            | 4            | 4            | 1            |
| T5           | Bad faith notice of termination      | 550          | 316          | 408          | 355          |
| T6           | Maintenance                          | 1,752        | 1,795        | 1,914        | 1,970        |
| T7           | Suite meters                         | 4            | 7            | 5            | 4            |
| <b>Total</b> |                                      | <b>7,250</b> | <b>6,775</b> | <b>8,122</b> | <b>8,357</b> |

**Table 4: Co-Op Applications Received by Type**

Table 4: Co-Op Applications Received by Type

| Case Type | Application Description                                                                                                                                                     | 2021-2022 | 2020-2021 | 2019-2020 | 2018-2019 |
|-----------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------|-----------|-----------|-----------|
| C1        | Application to end the occupancy and evict the member based on non-payment of regular monthly housing charges and to collect the housing charges that the co-op member owes | 124       | 88        | 217       | 251       |
| C1/2      | Combined C1 and C2 applications                                                                                                                                             | 61        | 32        | 116       | 118       |
| C2        | Application to end the occupancy of the member unit and evict the member                                                                                                    | 67        | 73        | 141       | 107       |

|              |                                                                                                                                             |            |            |            |            |
|--------------|---------------------------------------------------------------------------------------------------------------------------------------------|------------|------------|------------|------------|
| C3           | Application to end the occupancy and evict the member – based on the member's consent or notice                                             | 3          | 3          | 3          | 6          |
| C4           | Application to end the occupancy of the member unit and evict the member because the member failed to meet conditions of a settlement/order | 45         | 22         | 91         | 81         |
| <b>Total</b> |                                                                                                                                             | <b>300</b> | <b>218</b> | <b>568</b> | <b>563</b> |

**Table 5: Call Centre**

Table 5: Call Centre

| <b>Calls</b>                   | <b>2021-2022</b> | <b>2020-2021</b> | <b>2019-2020</b> | <b>2018-2019</b> |
|--------------------------------|------------------|------------------|------------------|------------------|
| Calls handled                  | 164,521          | 197,927          | 201,871          | 242,892          |
| Average time per call          | 5:00             | 5:03             | 4:37             | 4:48             |
| Average wait time in the queue | 22:46            | 15:57            | 17:36            | 15:18            |

**Table 6: LTB Performance Measures**

Table 6: LTB Performance Measures

| <b>Performance Measure</b>                                                                                                                            | <b>Target</b> | <b>2021-2022*</b>    | <b>2020-2021**</b> | <b>2019-2020</b>   |
|-------------------------------------------------------------------------------------------------------------------------------------------------------|---------------|----------------------|--------------------|--------------------|
| L1 and L9 applications will be scheduled for a hearing within 25 business days                                                                        | 80%           | 0.2%<br>(74.4 days)  | 1%<br>(131.7 days) | 15%<br>(45.6 days) |
| Decisions (Orders) for L1 and L9 applications will be issued within 4 business days at the conclusion of the final hearing                            | 80%           | 7.9%<br>(21.5 days)  | 21%<br>(22.4 days) | 58%<br>(5.8 days)  |
| All other LTB applications (excluding L5 and A4) will be scheduled for a hearing within 30 business days                                              | 80%           | 2.2%<br>(103.1 days) | 16%<br>(108 days)  | 16%<br>(52.7 days) |
| Decisions (Orders) for all other LTB applications (excluding L5 and A4) will be issued within 10 business days at the conclusion of the final hearing | 80%           | 40%<br>(37.7 days)   | 60%<br>(28.8 days) | 71%<br>(11.7 days) |

**Notes:**

\*The LTB made a number of changes to address delays including establishing a process for an expedited hearing, updating a scheduling plan and actively engaging in the recruitment of adjudicators to assist with the caseload volume.

\*\*LTB suspended most hearings related to eviction applications during the early months of the COVID-19 pandemic resulting in delays in the scheduling of hearings. Further, COVID-19 halted in-person hearings resulting in a transition period until a videoconferencing model was established for proceedings.

**Table 7: Requests for Reviews**

Table 7: Requests for Reviews

| <b>Requests</b>                     | <b>2021-2022</b> | <b>2020-2021</b> | <b>2019-2020</b> |
|-------------------------------------|------------------|------------------|------------------|
| Total number of requests for review | 2,452            | 1,370            | 3,238            |
| Denied requests for review          | 403              | 260              | 833              |

|                                     |       |       |       |
|-------------------------------------|-------|-------|-------|
| Requests for review sent to hearing | 2,049 | 1,110 | 2,405 |
|-------------------------------------|-------|-------|-------|

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## **Licence Appeal Tribunal (LAT)**

The LAT adjudicates applications and resolves disputes concerning compensation claims and licensing activities regulated by the provincial government, including the activities of delegated administrative authorities. The LAT is currently comprised of two main divisions: General Service (LAT-GS) and Automobile Accident Benefits Service (LAT-AABS).

LAT's jurisdiction and authority are derived from:

- *Accessibility for Ontarians with Disabilities Act, 2005*
- *Alcohol and Gaming Commission of Ontario Act, 2019*
- *Auto Insurance Rate Stabilization Act*
- *Bailiffs Act*
- *Building Code Act, O. Reg. 332/12 Division C, Part 3*
- *Cannabis Licence Act, 2018*
- *Child Care and Early Years Act, 2014*
- *Child, Youth and Family Services Act, 2017*
- *Collection and Debt Settlement Services Act*
- *Compulsory Automobile Insurance Act*
- *Condominium Act, 1998*
- *Condominium Management Services Act, 2015*
- *Consumer Protection Act, 2002*
- *Consumer Reporting Act*
- *Discriminatory Business Practices Act, 1990*
- *Funeral, Burial and Cremation Services Act, 2022*
- *Gaming Control Act, 1992*
- *Highway Traffic Act*
- *Horse Racing Licence Act, 2015*
- *Intercountry Adoption Act*
- *Licence Appeal Tribunal Act, 1999*
- *Liquor Licence and Control Act, 2019*
- *Motor Vehicle Accident Claims Act*
- *Motor Vehicle Dealers Act, 2002*
- *New Home Construction Licensing Act, 2017 (NHCLA)*
- *Ontario New Home Warranties Plan Act*
- *Payday Loans Act, 2008*
- *Post-secondary Education Choice and Excellence Act, 2000 O. Reg. 279/02*
- *Private Career Colleges Act, 2005*
- *Private Security and Investigative Services Act, 2005*
- *Real Estate and Business Brokers Act, 2002*
- *Retirement Homes Act, 2010*
- *Statutory Powers Procedure Act*
- *Ticket Sales Act, 2017*
- *Travel Industry Act, 2002*
- *Vintners Quality Alliance Act, 1999*

## **Operational Highlights**

LAT continued to focus on digital-first initiatives that provided users with more convenient access to virtual hearings that remained in line with Tribunals Ontario's digital approach to providing dispute resolution services.

On January 31, 2022, LAT-GS launched a new online payment portal for users to pay for an appeal or application. The portal is a quick, convenient and secure way to pay filing fees online.

On March 21, 2022, LAT-AABS launched a canvassing-based scheduling model for all oral adjudicative events in response to stakeholder feedback and to create operational efficiencies. The expanded canvassing-based scheduling model gave parties the opportunity to select case conference and oral hearing dates that worked best for them. This also allowed all parties to participate in a process that is fair, transparent, convenient and timely.